

		evidentiary sanctions previously imposed, the Court finds that Sanction No. 2, which provided that “Plaintiffs are precluded from asserting that they reported Sellars’ alleged sexual misconduct to others, including Terri Sellars,” was broader than necessary to remedy the discovery violation at issue. Accordingly, the Court exercises its inherent authority to modify Sanction No. 2 as follows: “Plaintiffs are precluded from introducing <i>documents</i> concerning reports of Sellars’ alleged sexual misconduct to others, including Terri Sellars, that were not produced in discovery.” The remainder of the sanctions order remains unchanged. Clerk to give notice.
5.	30-2023-01366408 Wooden vs. National Community Renaissance; A California Nonprofit Housing Corporation	Before the Court are the following three (3) motions brought by Defendants National Community Renaissance; Arbor Villas Apartments, LLC; and Elizabeth Becerril (collectively, “Defendants”) against Plaintiff Linda Wooden (“Plaintiff”): a Motion to Compel Further Responses to Special Interrogatories (“MF-SROG”), Set One; a Motion to Compel Further Responses to Form Interrogatories (“MF-FROG”), Set One; and a Motion to Compel Further Responses to Requests for Production (“MF-RFP”), Set One. ROAs 133, 139, 145. In the underlying controversy, Plaintiff alleges Defendants breached the parties’ lease agreement. ROA 122, ¶ 4. Plaintiff also brings causes of action against Defendants for breach of quiet enjoyment, personal injuries to a non-party, negligence, defamation, and discrimination. <i>Id.</i> Defendants seek an order, pursuant to California Code of Civil Procedure Sections 2030.010 and 2030.290, compelling Plaintiff to serve further, verified, code compliant responses to Defendant’s Special Interrogatories (“SROG”), Set One, and Form Interrogatories (“FROG”), Set One. ROA 133, p.2; ROA 139, p.2. Defendants also seek an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Plaintiff to serve further, verified, code compliant responses to Defendants’ Request for Production (“RFP”), Set One,

	without objections. ROA 145, p.2. I. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Requests The meet and confer requirement is intended to promote the public policy of judicial economy and to encourage the informal resolution of discovery disputes. <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1434-35 (1998) (<i>citing DeBlase v. Super. Ct.</i>, 41 Cal. App. 4th 1279, 1284 (1996)); <i>see</i> Cal. Civ. Proc. Code 2023.010(i) (failing to meet and confer, or failing to make an attempt to meet and confer, either in person, by phone, or by videoconference, is subject to sanctions when a meet and confer declaration is required by statute). Parties’ obligation to meet and confer under the California Code of Civil Procedure arises only after responses are contested or upon a motion for a protective order. Cal. Civ. Proc. Code §§ 2025.420(b), 2025.450(b)(2), 2030.090(a), 2030.300(b)(1), 2031.060(a), 2031.310(b)(2), 2033.080(a), 2033.290(b)(1). Both statute and case law demand a reasonable, good faith effort by the moving party to meet and confer before submitting a motion to compel further responses. Cal. Civ. Proc. Code §§ 2016.040 (“[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion.”), 2030.300(b), 2031.310(b)(2), 2033.290(b)(1); <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1298-99 (2024) (“in order to bring a motion to compel discovery, the propounding party must first engage in reasonable and good faith attempts at informal resolution . . .”). Effective January 1, 2026, Section 2016.040 demands that a meet and confer declaration “shall state facts showing a reasonable and good faith attempt” on the part of the moving party to meet and confer either <i>in person</i>, <i>telephonically</i>, or by <i>videoconference</i>; e-mail alone will <i>not</i> suffice. Cal. Civ. Proc. Code § 2016.040(a) (emphasis
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	added). Additionally, the moving party’s declaration “shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). The Court finds that Defendants’ declarations in support of the herein motions do not state facts that satisfy the statutory requirement that the moving party attempt to meet and confer regarding the retention of a certified shorthand reporter as required. <i>See</i> ROA 133, Decl. of Patino; ROA 139, Decl. of Patino; ROA 145, Decl. of Patino. Because Defendants have not satisfied the statutory requirements of California Code of Civil Procedure Section 2016.040(b), Defendants’ motions are procedurally defective and therefore DENIED. II. Sanctions re: Motions to Compel Further Responses to Discovery Requests The Civil Discovery Act provides that courts <i>shall</i> impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel further response[s] . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(d), 2033.290(d). “‘Whenever one party’s improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court’s intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.’” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1286-1287 (2009)). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal.
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		App. 4th 1424, 1434 (2011). Here, the Court finds no substantial justification for Defendants’ failure to satisfy the provisions of California Code of Civil Procedure Section 2016.040(b). However, while the Civil Discovery Act authorizes sanctions for a party's failure to make a good-faith effort to meet and confer in person, by telephone, or by videoconference before seeking court intervention, the Court finds no corresponding provision in Chapter 7 of the Act that renders sanctionable a party's failure to confer regarding the retention of a certified shorthand reporter. <i>See</i> Cal. Civ. Proc. Code § 2023.010(i). Thus, the Court finds that sanctions are not proper. Accordingly, the Court DENIES Defendant’s motions. The Court orders the Clerk to give notice.
6.	30-2022- 01259771 Rose vs. 1	See #2, above.
7.	30-2022- 01259908 K. vs. DOE 1	See #2, above.